

CENTRAL MEDICAL SERVICES SOCIETY
Ministry of Health & Family Welfare
(Autonomous Body under MoHFW, Govt. of India)
2nd Floor, Vishwa Yuvak Kendra, Pandit Uma Shankar Dikshit Road,
Chanakyapuri, New Delhi-110021
PHONE -:011-21410905/6, Fax -:011-21410849

Minutes of Pre-bid Meeting
For
Procurement of 0.1ml AD syringe Under
UIP & NTEP through
TENDER No: CMSS/PROC/2023-24/UIP/036 & GEM/2023/B/3821089
Pre-bid Meeting held on 04th JULY 2023 at 2 pm

1. Following officials were present during the Pre-bid meeting:-
 - i. Dr. Alok Mathur, Addl DDG, NTEP
 - ii. Dr. Raghuram Rao, Asst. Director General, NTEP
 - iii. Dr. Ashish, PHS-Gr-1, UIP
 - iv. Ms Deepa, SSO, UIP
 - v. Dr. Dheeraj, WHO Consultant
 - vi. Dr. Trupti Shinde, PHS-CTD
 - vii. Dr. Aniket Chowdhary, PHS-CTD
 - viii. Mr. Ashish Choudhary, CTD- Consultant
 - ix. Ms. Anjana , GM (Procurement)/CMSS
 - x. Ms. Sakshi Juneja, AGM (Procurement)/CMSS
 - xi. Ms. Megha Santia, Manager(Procurement)/CMSS
2. Following representatives from prospective bidders were present during the Pre-bid meeting:-

Sl. No.	Name of Representative	Name of Firm
1	Mr. Susheel Manchanda	M/s HMD
2	Mr. Pradeep Kumar Sareen	M/s HMD
3	Mr. Sandeep	M/s Iscon Surgicals
4	Dr. Vishal Mahajan	M/s Iscon Surgicals

3. Queries from following firms were received via email:

Sr. No.	Name of the firm
1	M/s HMD
2	M/s Iscon Surgicals

4. Points raised by representatives of prospective bidders were discussed. After due consideration of the queries, the remarks are enclosed.

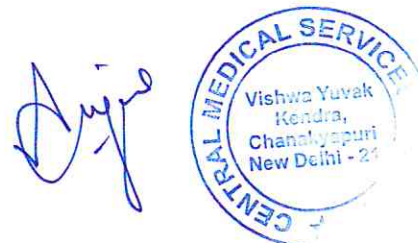


Table –A

(Pre-bid queries raised by the prospective bidders & remarks by CMSS)

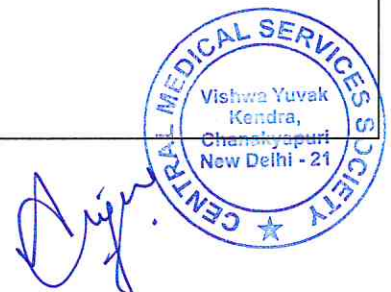
SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
1	M/s Iscon Surgical Limited	Eligibility Criteria : Page 10 para 4 g Tenderer should have supplied 40% of the quoted quantity of same or similar items during the last two financial years. Bidder should submit Purchase order copies and certificate duly issued by statutory auditor of the company on his letter head by certifying the quantities manufactured and marketed in trade, export, open market, sold to government institutions, private bodies etc. And the marketed quantities are not less than at least 40% of the quoted/ similar items. Similar Items here relate to the following: Similar items means any Syringes	Conventional Syringes and AD syringes are two different products based on different mechanism and technology and cannot be treated as similar product as both fall under different specifications. AD Syringes are made as per IS: 78863 where as other syringes are under IS: 10258 as such both are different products. Our submission is that a manufacturer must have experience of manufacturing the product being purchased so that this may be established that they have the capability to manufacture the product specifically required. Further similar product should be of same IS specification and not any other specification that is to say if you are purchasing AD Syringes then similar product is AD/RUP Syringe of any size but of same IS specification not of any other specification.	Amended as "Similar items means AD/ RUP syringe"
		EMD	EMD: We have participated in previous tender of 0.1ml and submitted bank guarantee for Rs. 66,82,810.00 which is duly discharged by tender inviting authority. We request you to kindly accept the same BG with amendment of tender No. And proper validity according to the tender terms.	No Change as previous Bank Guarantee is Fully Discharged by Tender Inviting Authority. Hence, cannot be considered.
		BANK GURANTEEE : As per tender BG is required for 1960 days as per clause read as under : The Performance Bank Guarantee shall be valid for	In this regard we request you to kindly request is to accept trench wise extended BG from date of supply / delivery schedule and according to order.	NO CHANGE



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
		1230 days from the date of commencement. LOA Submission -15 days Rate Valid -365 X 2 days Delivery period -60 days Shelf life -365 x 3 Years B.G. Extension -60 days 1960 days.		
		LIQUIDATED DAMAGES CLAUSE 18.2 reads as under : If the supply reaches the designated consignee places or CMSS Warehouse after scheduled delivery date mentioned in LOA/P.O, liquidated damages will be levied @ 2.5% per week to be applied proportionately on per day basis up to a maximum of 10% of P.O. Cost, irrespective of the fact that whether the CMSS has suffered any damage/ loss or not, on account of delay in effecting supply. If the last scheduled delivery day happens to be a holiday the supply will be accepted on the next working day without any penalty.	As per this LD can be levied at 2.5% per week proportionately on per day basis subject to maximum of 10%. This is very high the rate of 2.5 % should be not more than 0.5%. In all past tenders LD was 0.5% per week (Ref : GeM Bid Reference No: Gem/2021/B/1260831 dated 25.05.2021 (Anx 'B')	NO CHANGE
		Annexure – 1A Delivery Schedule As per tender Delivery Schedule for NTEP Syringes Tranche – 1 : 50% quantity to be delivered within 30 days from the date of issuance of LOA at State/ Regional Vaccine stores. Tranche – 2: 50% quantity to be delivered between 30 days to 60 days from the date of issuance of LOA at State/Regional Vaccine	In this regard before deciding for delivery schedule following practical aspects should be considered and delivery time should be decided: 1.Time required for pre manufacturing (Designing& development of packaging) 2 Weeks 2.Manufacturing/ Processing Time - 2 Weeks 3.Quarantine Period (Mandatory) 2 Weeks 4.Sampling & Testing by CMSS 3 Weeks	Revised Delivery Schedule attached at Annexure-A.



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
		stores.	5.Transit Time 2 Weeks Total 11 Weeks or say 75 days Therefore for first order at least 60days should be given to offer for inspection of the goods and there after 45-60days' time.	
		DELIVERY SCHEDULE	DELIVERY SCHEDULE offered: 1,00,00,000 Nos. - 60 from date of LOA 70,00,000 Nos. - for next 3 month (Every month) 1,25,00,000 Nos. - for next 7 months (Every Month) 2,20,00,000 Nos. - for Next 6 months (Every Month)	Revised Delivery Schedule attached at Annexure-A.
		PAYMENT : 17.4 Payments for supply will be made only after completion of supply of Items ordered in the individual Purchase Order PROVIDED quality reports are acceptable. The CMSS shall endeavour to make payment within 75 days in respect of items requiring sterility tests and within 60 days in respect of items requiring non-sterility test from the date of submission of invoice or from the date of receipt of material, whichever is later along with all the relevant documents of tender.	Product in subject are pre-inspected and tested before dispatch as such 95% payment should be released immediately against proof of delivery and balance 5% be released after submission of CRC. As no testing is required to be done after dispatch of goods. Further since there is clause for Liquidated Damages for delay in supplies but there is no commitment from CMSS for timely payment and vice-versa clause for payment for liquidated damages for delayed payment should also be added in tender conditions. Since all supplies are pre inspected as such 95% payment should be released against proof of delivery and balance 5% can be released after submission of CRC. We have been experiencing inordinate delays in payment even after submission of bills for more than the time duration mentioned in clause referred above	NO CHANGE



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
			We request you to kindly consider above facts and modify tender accordingly in view to increase healthy competition and in general there is nothing new in our requests/ suggestions as these all were part of terms and conditions in earlier tenders.	
2	M/s Manchanda Medicos		May we draw your kind attention towards the mail sent to Commissioner (UIP), MOH&FW on 16.06.23, wherein our Managing Director informed the Current manufacturing capacity of HMD & ISKON the only 2 Qualified Manufacturers for 0.1ML AD Syringes is 9 million per month by ISKON & 10-12 million per month & it will be enhanced in the coming months by HMD. And the same was discussed in the pre Bid meeting held in CMSS for the tender which got scrapped. But in the corrigendum delivery schedule sought was different seeking a non-feasible 4.2 crore pcs for NTEP within 60 days. As we were not in a position to supply as per the quantity mentioned in the corrigendum, under those circumstances we had to mention the word DEVIATION so that the Purchaser does not forfeit our EMD. 0.1ml A.D.Syringe is specialized product & its consumption is very less throughout the world market & even you see that you had floated tender after 3 ½ years. All of a sudden you say to supply us almost 6 crore pcs in a month in NTEP programme which is not feasible by Indian manufacturers. Of course we are doing our level best to re tool the mould of 0.1ml as per our mail dated 16.06.23 to Commissioner (UIP) & accordingly we have	Revised Delivery Schedule attached at Annexure-A.



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
			submitted our delivery schedule in our bid & from our side the delivery schedule will remain the same in the forthcoming retender. Now it is up to you if you consider our delivery schedule as DEVIATION & scrap the tender & there is no end to this as Production capacity cannot be enhanced overnight. We are capable to supply 36 crore pcs as per tender requirement. However as it is also practically not feasible to vaccinate 6 crore TB patients in a month by the TB programme, you may consider what is reasonable consumption. In case this is not acceptable, please make the specific territory wise Schedules along with quantities & delivery schedule & EMD, as was done earlier in MOH tenders [copy enclosed for ref], whichever Schedule we will be able to honour. We will quote, otherwise if you seek commonly, we will again need to mention all DEVIATION in delivery schedule, & CMSS will keep on scrapping the tender on this account & there is no end to it . It requires lot of Bank Charges & all the time we cannot bear, hence it is requested to clarify the delivery schedule as requested.	
		EMD	EMD : Can the Authorised distributor use BIS certificate of Disposable Syringes of the manufacturer as EMD Exemption certificate OR if the Authorised Distributor is MSME of other item, can he be exempted from EMD .	No, the MSME Certificate is to be submitted for quoted item.
		Eligibility Criteria 4 (B)	Eligibility Criteria 4 (B), may please be amended that bid is open to Indian manufacturers &	Amended as : "4. B) The invitation to bid is open to domestic



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
			their authorized distributors only otherwise this line may become deviation itself .	manufacturers (Indian Manufacturers) and authorized distributors.”
		The Performance Bank Guarantee shall be valid for 1230 days from the date of commencement. LOA Submission -15 days Rate Valid -365 X 2 days Delivery perio -60 days Shelf life -365 x 3 Years B.G. Extension -60 days 1960 days	Performance Bank Guarantee : LOA Submission = 15 days Delivery period : 02 X 30 = 60 days Warranty : 3 X 365 = 1095 days Extension : 60 days Total : 1230 days . Sir, we request you to accept performance security for each schedule separately as a sub-tender which will be submitted within 15 days from the date of start of schedule. It will be easier for CMSS to release our Performance Bank Guarantee because single performance security is not being released for the supplies completed in the year 2020, despite the several reminders being sent to CMSS by our Authorised Distributor.	Amended as : “Performance Bank Guarantee : LOA Submission : 15 days Delivery period : 60 days Warranty : 3 X 365 = 1095 days Extension : 60 days Total : 1230 days .”
		Inspection	Inspection : At the time of Inspection In house test reports of all the batches are submitted to CMSS & then the goods are sent to Lab for testing & after testing Dispatch report is issued to vendors wherein the complete information which is being asked in clause No 14.6 (A) on page No 26 & 27 & clause 17.7, page No 31 are mentioned , then asking separately the test reports again at the time of submission of the bills is redundant & will increase more paper work, rather Dispatch clearance report should be sought to be enclosed along with the bills .	NO CHANGE



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT						
		Payments	Here PDI inspection takes place which takes 45 days from the date of inspection or sometimes more. This time period should be part of clause of payment of 75 days for sterile items.	NO CHANGE						
		Delivery Location for NTEP	Please accept supply of port Blair in GMSD Chennai/Kolkata & supply for Tripura to be at Guwahati or issue separate Sub-Tender/schedule	For NTEP related supply, the delivery of AD 0.1ml syringes for Andaman & Nicobar Islands and Tripura may be delivered at Chennai, Tamil Nadu and Guwahati, Assam respectively.						
		Delivery schedule	Delivery Schedule Offered: <table><tr><td>1.2 cr</td><td>60 days from PO</td></tr><tr><td>1.5 cr</td><td>60 – 90 days</td></tr><tr><td>2 cr</td><td>90-120 days</td></tr><tr><td>2.2 cr</td><td>120 days onwards (every month)</td></tr></table>	1.2 cr	60 days from PO	1.5 cr	60 – 90 days	2 cr	90-120 days	2.2 cr
1.2 cr	60 days from PO									
1.5 cr	60 – 90 days									
2 cr	90-120 days									
2.2 cr	120 days onwards (every month)									
3.	Amendment in clause	Pg. 11 Clause 4 (h)	Tenderer should quote at least for 50% of the tender quantity of each items quoted and the tenderer shall have an annual production capacity not less than one and half times the quantity quoted for each schedule.	Amended as: The purchaser's requirement of item along with delivery schedule is indicated in 'Annexure A'. Bidder should quote maximum quantity for each of month in the prescribed format 'Annexure-B' based on their manufacturing capacity. Bidder's annual production capacity for the quoted product should not be less than one and half times of the total quantity quoted against this tender . The bidder should note that based on details, filled in Annexure B, the full quoted quantity or any less may be awarded to them. Failure to accept the same at award stage may invoke tender clause 9.4 of tender.						
4	Amendment in clause	Pg. 24 Clause 13	Additional Pt. Added as 13.12	For every delivery schedule as mentioned at Sr. 1-13 of Annexure-A if the combined offer of all the technically responsive bidders is equal to or less than the required quantity, the contract will be awarded to all the technically						



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
				respective quoted quantity (subject to price matching). However if the combined offer of all the technically responsive bidders is more than the required quantity than the quantity shall be distributed amongst technically responsive (L1 & L2) bidders in the ratio of 70:30(subject to price matching). If L1 has quoted less than 70% in the particular schedule, they shall be awarded quantity upto their quoted quantity and balance quantity shall be awarded to next matched bidder.
5	Amendment in clause	Page No. 21, Clause No. 10.1 (i)	Clause No. 10.1 (i) amended as	Central Medical Services Society(CMSS) will have right to increase or decrease upto to 25% of the quantity of goods and/or services specified in the schedule of requirements. The delivery schedule of additional quantity shall be mutually agreed.
6	Clause 4 (i)	Page No. 12, Clause No. 4(i)	Tenderer should have supplied 40% of the quoted quantity of same or similar items during the last two financial years. Bidder should submit Purchase order copies and certificate duly issued by statutory auditor of the company on his letter head by certifying the quantities manufactured and marketed in trade, export, open market, sold to government institutions, private bodies etc. and the marketed quantities are not less than at least 40% of the quoted/ similar items.	No Change in clause 4(i) Performance certificate amended as attached ar Annexure-C.
7	Clause	Clause No. 9	In this ref we request you to clarify the capacity you are asking should be of quoted quantity or similar item i.e A.D syringes & RUP syringes. In fact we wish to quote 100% quantity but if the capacity is for quoted item only, in that case we would like to quote lesser quantity & in such situation how we will calculate our EMD amount Pl	For calculation of EMD Please refer clause 9.1 (c)



SR. NO.	BIDDER	PG NO. & CLAUSE	QUERY/ CLASSIFICATION ASKED	CLARIFICATION/ AMENDMENT
			specify the formula of EMD amount so that we can calculate EMD amount accordingly.	


GM (Procurement)


ANNEXURE-A

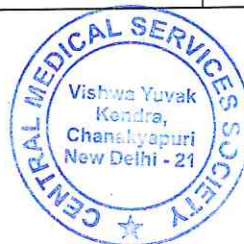
SR.NO.	DELIVERY SCHEDULE	QTY FOR NTEP	QTY FOR UIP	TOTAL
1	To be delivered within 60 days from issuance of LOA.	1 CR	1.2 CR	2.2 CR
2	To be delivered within 60 to 90 days from issuance of LOA.	1 CR	1.2 CR	2.2 CR
3	To be delivered within 90 to 120 days from issuance of LOA.	1 CR	1.5 CR	2.5 CR
4	To be delivered within 120 to 150 days from issuance of LOA.	1 CR	1.5 CR	2.5 CR
5	To be delivered within 150 to 180 days from issuance of LOA.	1.5 CR	1.5 CR	3 CR
6	To be delivered within 180 to 210 days from issuance of LOA.	1.5 CR	1.5 CR	3 CR
7	To be delivered within 210 to 240 days from issuance of LOA.	1.5 CR	1.5 CR	3 CR
8	To be delivered within 240 to 270 days from issuance of LOA.	1.5 CR	NIL	1.5 CR
9	To be delivered within 270 to 300 days from issuance of LOA.	1.5 CR	2.5 CR	4 CR
10	To be delivered within 300 to 330 days from issuance of LOA.	96,04,959	NIL	96,04,959
11	To be delivered within 330 to 360 days from issuance of LOA.	NIL	2.5 CR	2.5 CR
12	To be delivered within 360 to 390 days from issuance of LOA.	NIL	NIL	NIL
13	To be delivered within 390 to 420 days from issuance of LOA.	NIL	2.5 CR	2.5 CR
14	To be delivered within 420 to 450 days from issuance of LOA.	NIL	NIL	NIL
15	To be delivered within 450 to 480 days from issuance of LOA.	NIL	2.5 CR	2.5 CR
16	To be delivered within 480 to 510 days from issuance of LOA.	NIL	NIL	NIL
17	To be delivered within 510 to 540 days from issuance of LOA.	NIL	2.5 CR	2.5 CR
18	To be delivered within 540 to 570 days from issuance of LOA.	NIL	NIL	NIL
19	To be delivered within 570 to 600 days from issuance of LOA.	NIL	1.03 CR	1.03 CR
	TOTAL	12.4604959 CR	23.43 CR	35.8904959 CR

*The Bidders are advised to quote(percentage of bid quantity) in Annexure B, as per the revised delivery schedule & in compliance with their manufacturing capacity month wise as indicated above in Annexure-A.



ANNEXURE-B

SR.NO.	DELIVERY SCHEDULE	TOTAL	Quantity Quoted (in pieces)
1	To be delivered within 60 days from issuance of LOA.	2.2 CR	
2	To be delivered within 60 to 90 days from issuance of LOA.	2.2 CR	
3	To be delivered within 90 to 120 days from issuance of LOA.	2.5 CR	
4	To be delivered within 120 to 150 days from issuance of LOA.	2.5 CR	
5	To be delivered within 150 to 180 days from issuance of LOA.	3 CR	
6	To be delivered within 180 to 210 days from issuance of LOA.	3 CR	
7	To be delivered within 210 to 240 days from issuance of LOA.	3 CR	
8	To be delivered within 240 to 270 days from issuance of LOA.	1.5 CR	
9	To be delivered within 270 to 300 days from issuance of LOA.	4 CR	
10	To be delivered within 300 to 330 days from issuance of LOA.	96,04,959	
11	To be delivered within 330 to 360 days from issuance of LOA.	2.5 CR	
12	To be delivered within 360 to 390 days from issuance of LOA.	NIL	
13	To be delivered within 390 to 420 days from issuance of LOA.	2.5 CR	
14	To be delivered within 420 to 450 days from issuance of LOA.	NIL	
15	To be delivered within 450 to 480 days from issuance of LOA.	2.5 CR	
16	To be delivered within 480 to 510 days from issuance of LOA.	NIL	
17	To be delivered within 510 to 540 days from issuance of LOA.	2.5 CR	
18	To be delivered within 540 to 570 days from issuance of LOA.	NIL	
19	To be delivered within 570 to 600 days from issuance of LOA.	1.03 CR	
	TOTAL	35.8904959 CR	



PROFORMA FOR PERFORMANCE STATEMENT

(FOR A PERIOD OF LAST 2 YEARS)

Name of Bidder with Address _____

Manufacturer with Address _____

Tender No _____

Sr. No. of the Product _____

Name of the Product _____

Sl.	Name of Product	Quantity manufactured and marketed		UOM	Name and full address of the Purchaser
		Year 2021-22	Year 2022-23		
1.					
2.					
3.					

Note:

1. Proof for the manufacturing (BMR) / importing of the items quoted to be produced, if demanded.
2. Copies of purchase orders in support of performance statement may be uploaded along with this **Annexure-IV**.

Signature of Tenderer

CA

Name in Capitals

Date:

Seal:

UDIN No.

Signature of Statutory Auditor/practicing

Name in Capitals

Date

Seal



